Quay House, 3 Netmakers Row, Fallowmouth FM2 7RD
Registered society no. 31872R · Regulator registration L4417

Records Retention and Data Protection Policy

Policy number	HHA-GOV-014	**Version**	3.0
Approved by	Board, 23 September 2026	**Next review**	September 2028

This policy explains how Harbourline Housing Association keeps, protects and disposes of the personal information it holds about tenants, applicants, staff and contractors. It applies to records in every format, including paper files, emails, recorded telephone calls and data held in our housing management system.

1. Purpose

1.1 This policy sets out the minimum periods for which our records must be kept and the way in which they are destroyed.

1.2 It helps us meet our legal obligations, demonstrate accountability to our regulator and avoid keeping information for longer than we need it.

1.3 It should be read together with the Information Security Policy, the Privacy Notice for Tenants and the Staff Code of Conduct.

2. Scope

2.1 The policy applies to all employees, board members, volunteers and contractors who handle records on our behalf.

2.2 It covers records created or received in the course of our business, whatever their format or location, including records held by third parties under contract.

2.3 Records kept only for historical or archive purposes are covered by the separate archive procedure.

3. Responsibilities

3.1 Responsibility for this policy is shared as follows:

(a) the Board approves the policy and receives an annual compliance report;

(b) the Data Protection Officer advises on its application, keeps the retention schedule up to date and investigates suspected breaches;

(c) every manager makes sure that the records of their team are kept, reviewed and destroyed in line with the schedule.

3.2 All staff must complete data protection training when they join and every two years after that, and must follow the information security procedures.

3.3 Team leaders carry out a records review every six months and confirm the result to the Data Protection Officer in writing.

3.4 Contractors who process personal data for us must do so under a written agreement that requires them to apply equivalent retention periods.

Where a manager is unsure which retention period applies, the longer period should be used until the Data Protection Officer has given advice.

4. Retention periods

4.1 Records must be kept for at least the periods shown in the schedule below, which reflect legal requirements and good practice in the housing sector.

4.2 A retention period may be extended where a record is needed for a complaint, an insurance claim or legal proceedings that have started or are expected.

Record type	Minimum retention	Starts from	Disposal method
Tenancy file and tenancy agreement	6 years	End of tenancy	Confidential shredding
Rent account history	6 years	End of tenancy	Secure deletion
Unsuccessful housing application	1 year	Date of decision	Secure deletion
Anti-social behaviour case file	6 years	Case closure	Confidential shredding
Gas safety certificate	2 years	Date of inspection	Secure deletion
Recorded telephone call	90 days	Date of call	Automatic deletion
Staff personnel file	6 years	End of employment	Confidential shredding
CCTV footage (communal areas)	31 days	Date of recording	Automatic overwriting

5. Disposal

5.1 Paper records containing personal information must be placed in the locked confidential waste bins and never in general waste.

5.2 Electronic records must be deleted from live systems and, where this is possible, from backups within the normal backup cycle.

5.3 Each disposal of a complete file is entered in the disposal log, stating the record type, the date and the person who authorised it.

6. Rights of individuals

6.1 Anyone may ask for a copy of the personal information we hold about them, free of charge, and we will normally reply within one month.

6.2 Requests for correction or erasure are logged and answered within the same period, unless an exemption applies.

7. Breaches

7.1 A lost device, a misdirected email or any other suspected breach must be reported to the Data Protection Officer on the same working day.

7.2 The Data Protection Officer decides whether the breach must be notified to the supervisory authority and to the people affected.

8. Review

This policy will be reviewed every two years, or sooner if the law or our regulator's guidance changes.

Any member of staff who is unsure how long to keep a record should ask the Data Protection Officer before destroying it. Breaches of this policy may lead to disciplinary action.